

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
THOMAS JENKINS a/k/a TOMMY PATRON,

Plaintiff,

- against -

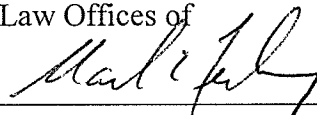
THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT and POLICE OFFICERS
"JOHN DOE 1", "JANE DOE 2", "JOHN DOE 3"
and "JOHN DOE 4" (unnamed employees of the NEW
YORK CITY POLICE DEPARTMENT),Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance, on Plaintiff's Attorneys, within **Twenty (20) Days** after the service of this Summons, exclusive of the day of service (or within **Thirty (30) Days** after service is complete, if this Summons is not personally delivered to you within the State of New York). Should you fail to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: Brooklyn, New York
February 2, 2017

Law Offices of

**MARK E. FEINBERG**Attorney for the Plaintiff
142 Joralemon Street
Brooklyn, New York 11201
(718) 855-0009

DEFENDANTS' ADDRESSES:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
THOMAS JENKINS a/k/a TOMMY PATRON,

Plaintiff,

Index No.:

Date Purchased:

- against -

VERIFIED COMPLAINT

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and POLICE OFFICERS
"JOHN DOE 1", "JANE DOE 2", "JOHN DOE 3"
and "JOHN DOE 4", (unnamed employees of the NEW
YORK CITY POLICE DEPARTMENT),

Defendants.
-----X

The plaintiff, THOMAS JENKINS a/k/a TOMMY PATRON, by his attorney, MARK E.
FEINBERG, respectfully alleges upon information and belief, as follows:

FIRST CAUSE OF ACTION

FIRST: At the time of the commencement of this action, and at all times herein
mentioned, the plaintiff was an individual and a resident of the County of Kings, City and State
of New York.

SECOND: All events and/or conduct which form the basis of this claim occurred within
the County of Kings, City and State of New York.

THIRD: Upon information and belief, at all times herein mentioned the defendant,
CITY OF NEW YORK (hereinafter respectfully referred to as defendant, "CITY"), was and still
is a Municipal Corporation, organized under and existing pursuant to the Laws of the State of
New York.

FOURTH: Upon information and belief, at all times herein mentioned, the defendant,
NEW YORK CITY POLICE DEPARTMENT (hereinafter respectfully referred to as the
defendant, NYPD) was owned and/or operated by the defendant, CITY.

FIFTH: On November 2, 2016, prior to the commencement of this action, the plaintiff, pursuant to a Court Order, dated: November 1, 2016, presented a Notice of Claim in writing to the City of New York for the adjustment of the injuries hereinafter set forth, stating in his Notice of Claim the time and place where and the manner in which the injuries were sustained, and stating also the plaintiff's intention to commence this action.

SIXTH: The Notice of Claim was presented as provided by the aforementioned, Order of the Court, and this action is commenced within one (1) year and ninety (90) days after the causes of action accrued. More than thirty (30) days have elapsed since the presentation of the Notice of Claim and the defendants, City of New York and the New York City Police Department, have failed to make an adjustment or payment of the claim.

SEVENTH: On February 2, 2017 the defendants conducted a hearing and/or physical examination of the plaintiff, pursuant to Section 50(h) of the General Municipal Law.

EIGHTH: Upon information and belief, at all times herein mentioned, the defendant, POLICE OFFICER "JOHN DOE 1", was an employee, agent and/or servant of the defendant CITY.

NINTH: Upon information and belief, at all times herein mentioned, the defendant, POLICE OFFICER "JOHN DOE 1", was an employee, agent and/or servant of the defendant, NYPD.

TENTH: Upon information and belief, at all times herein mentioned, the defendant, POLICE OFFICER "JANE DOE 2", was an employee, agent and/or servant of the defendant, CITY.

ELEVENTH: Upon information and belief, at all times herein mentioned, the defendant, POLICE OFFICER "JANE DOE 2", was an employee, agent and/or servant of the defendant, NYPD.

TWELFTH: Upon information and belief, at all times herein mentioned, the defendant, POLICE OFFICER "JOHN DOE 3", was an employee, agent and/or servant of the defendant, CITY.

THIRTEENTH: Upon information and belief, at all times herein mentioned, the defendant, POLICE OFFICER "JOHN DOE 3", was an employee, agent and/or servant of the defendant, NYPD.

FOURTEENTH: Upon information and belief, at all times herein mentioned, the defendant, POLICE OFFICER "JOHN DOE 4", was an employee, agent and/or servant of the defendant, CITY.

FIFTEENTH: Upon information and belief, at all times herein mentioned, the defendant, POLICE OFFICER "JOHN DOE 4", was an employee, agent and/or servant of the defendant, NYPD.

SIXTEENTH: On June 9, 2016, the plaintiff, having been unlawfully arrested (Arrest #K16642630), detained, incarcerated and falsely charged with rape, aggravated by causing the victim to become pregnant and to be infected with AIDS. The plaintiff was taken to a location known as 'SUV and/or SVU' located at or near 641 Grant Avenue, Brooklyn, New York, and thereafter transported to the 77 Precinct located at 127 Utica Avenue, Brooklyn, New York. After being processed, he was transported and unlawfully incarcerated at Riker's Island for a period of approximately four (4) months.

SEVENTEENTH: While the plaintiff was confined within the defendants' premises, he was subjected, on numerous occasions, to invasive HIV and/or DNA testing and denied appropriate and necessary medical attention, causing the plaintiff to sustain severe physical, emotional and psychological injuries. The plaintiff's injuries were caused by defendants, including New York City Police Officers, POLICE OFFICERS "JOHN DOE 1", POLICE OFFICER "JANE DOE 2", POLICE OFFICER "JOHN DOE 3" and POLICE OFFICER "JOHN DOE 4", who, upon information and belief, were employed by the defendant, NYPD, which is owned and operated by the defendant, CITY. The defendants' conduct was negligent and/or knowingly intentional.

EIGHTEENTH: The felony charges against the plaintiff and the alleged aggravating factors have been proven as unfounded and scientifically false.

NINETEENTH: At the time and place as aforesaid, the defendants, POLICE OFFICER "JOHN DOE 1", POLICE OFFICER "JANE DOE 2", POLICE OFFICER "JOHN DOE 3" and POLICE OFFICER "JOHN DOE 4", independently and/or jointly, did wilfully and intentionally incarcerate, accost, approach and inflict offensive, invasive and other physical contact upon the plaintiff and his body, and performed and/or ordered and/or authorized to be performed numerous invasive testing as aforesaid as a part of their employment by the defendant, NYPD.

TWENTIETH : Any color of legality to the assault, restraining and subduement of the plaintiff pursuant to the alleged charges was rendered illegal when the defendant, NYPD, continued to persecute and assault the plaintiff after legally sufficient proof of an unlawful detention was shown.

TWENTY-FIRST: The defendant, NYPD, promulgates and implements policies, regulations and decisions regulating the conduct of its officers, and other employees, agents and/or servants.

TWENTY-SECOND: The defendant, NYPD, was and is at all times hereinafter mentioned, responsible for the training and supervision of its officers, in the handling of such situations in every day practice.

TWENTY-THIRD: The defendant, NYPD, failed to undertake reasonable procedures in the selection, hiring, supervision, screening, training and assignment of its officers and in the enforcement of its regulations in order to prevent the occurrence of the incident herein above referred to.

TWENTY-FOURTH: The methods followed by the defendant, NYPD, by its officers, agents servants and/or employees, were not an isolated incident but constituted a continuing course of conduct by its officers. The conduct of the defendants herein deviated from accepted police procedures in an egregious manner so as to demonstrate a reckless disregard for proper procedures.

TWENTY-FIFTH: As a consequence of the aforementioned conduct the civil rights of the plaintiff were violated.

TWENTY-SIXTH: Each of the actions of the defendants as aforesaid were without legal justification or probable cause, and were not privileged.

TWENTY-SEVENTH: That as a result of the conduct of the defendants, the plaintiff was caused to, and did, sustain severe and grievous personal, physical, emotional and psychological injuries.

TWENTY-EIGHTH: The plaintiff's injuries were caused and occasioned by the defendants in negligently and/or intentionally unlawfully detaining, arresting and incarcerating the plaintiff; in causing, allowing and/or permitting the plaintiff to be accosted, approached, injured and inflicted with offensive and physical contact upon his person by repeated invasive testing; in failing to use reasonable care while plaintiff was in defendants' custody; in falsely arresting, detaining and incarcerating the plaintiff on charges that were unfounded and untrue; in failing to properly and/or in negligently investigating a complaint against the plaintiff; in failing to investigate an alleged act in a manner which would have diminished any harm inflicted upon the plaintiff; in unlawfully, maliciously and without provocation causing the plaintiff to be subjected to repeated assault upon his person by invasive testing and otherwise; in causing the plaintiff to be injured; in failing to use due care and caution with regard to the civil rights of the plaintiff; in violating the plaintiff's (both Federal and State protected) rights to life and liberty as guaranteed under the law; in failing to warn the plaintiff of the impending invasive testing; in failing to provide the plaintiff with necessary medical care and attention; in unreasonably exposing the plaintiff to invasive acts against his person and body which resulted in injury to the plaintiff; in failing to properly retain, train and/or supervise its employees, agents and/or servants, including the police officers herein; in failing to and/or in negligently supervising and/or improperly supervising its employees, agents and/or servants, including the police officers herein; in improperly confining the plaintiff; in failing to release the plaintiff after learning of their (defendants') errors; in abusing claimed police powers; in claiming lawful police powers and then failing to comply with the applicable laws, rules and regulations; in failing to implement proper rules and regulations to control its police officers and/or in negligently supervising and retaining and training its police officers; and in otherwise being negligent, all without any negligence on the part of the plaintiff.

TWENTY-NINTH: The foregoing was caused without any negligence or culpable conduct on the part of the plaintiff.

THIRTIETH : As a result of the foregoing, the plaintiff suffered severe mental, emotional and physical anguish and physical injury.

THIRTY-FIRST: As a result of the foregoing, the plaintiff has been severely and permanently damaged, and, accordingly, seeks appropriate recompense.

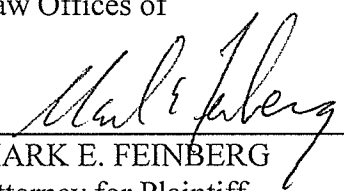
THIRTY-SECOND: As a result of the foregoing, the plaintiff has been damaged in amounts which exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

THIRTY-THIRD : Upon information and belief, this action falls within one or more of the exceptions set forth in C.P.L.R. Section 1602.

WHEREFORE, the plaintiff, THOMAS JENKINS, demands a judgement against the defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and POLICE OFFICERS "JOHN DOE 1", "JANE DOE 2", "JOHN DOE 3" and "JOHN DOE 4"(the name "JOHN DOE" being the fictitious names of employees and/or agents of the NEW YORK CITY POLICE DEPARTMENT) in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction in this matter, together with costs, interest and disbursements of this action.

Yours, etc.,

Law Offices of


MARK E. FEINBERG

Attorney for Plaintiff

142 Joralemon Street, 5th Floor
Brooklyn, New York 11201
(718) 855-0009

VERIFICATION

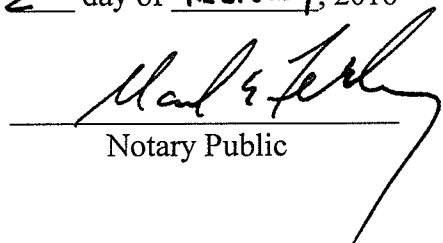
STATE OF NEW YORK)
):ss.
COUNTY OF KINGS)

THOMAS JENKINS, being duly sworn, deposes and says:

That he is the plaintiff in the within action; that he has read the foregoing Complaint and knows the contents thereof; that the same is true to his own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters, he believes them to be true.

Thomas M. Jenkins
THOMAS JENKINS

Sworn to before me this
2nd day of February, 2016



Notary Public

MARK E. FEINBERG
Notary Public, State of New York
No. 02FE4803761
Qualified in Kings County
Commission Expires December 31, 20 18

COURT
STATE OF NEW YORK, COUNTY OF

Index No.

Year

THOMAS JENKINS a.k.a TOMMY PATRON,
 Plaintiff,

- against -

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICERS,
 JOHN DOE "1", JANE DOE "2", JOHN DOE "3" and JOHN DOE "4" (UNAMED EMPLOYEES OF THE
 NEW YORK CITY POLICE DEPARTMENT)
 Defendants.

SUMMONS and VERIFIED COMPLAINT

LAW OFFICES OF MARK E. FEINBERG

Attorney(s) for

Plaintiff

Office and Post Office Address, Telephone

142 JORALEMON STREET, 5TH FLOOR
 BROOKLYN, NEW YORK 11201
 (718) 855-0009

To

Signature (Rule 130-1.1-a)

Print name beneath

MARK E. FEINBERG

Service of a copy of the within is hereby admitted.

Attorney(s) for

Dated: _____

PLEASE TAKE NOTICE:

☐ **NOTICE OF ENTRY**

that the within is a (certified) true copy of a
 duly entered in the office of the clerk of the within named court on

☐ **NOTICE OF SETTLEMENT**

that an order
 will be presented for settlement to the HON.
 within named Court, at
 on _____ at _____ M.

of which the within is a true copy
 one of the judges of the

Dated, _____

Yours, etc.

LAW OFFICES OF MARK E. FEINBERG